

Krishna Veer Katara v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 10 April 2023 · Writ - C No. 9646 of 2023 · **Writ disposed; licensee directed to decide the new-connection application in accordance with law**

HEADNOTE

Writ seeking a separate electricity connection disposed of without any opinion on the merits. The licensee's statement that the deceased grandmother's connection already stood transferred to the petitioner's father under paragraph 4.4 of the U.P. Electricity Supply Code, 2005 was recorded and not decided. Respondent no. 3 was directed to decide the pending application in accordance with law, after hearing, preferably within four weeks of a certified copy.

FACTUAL SUMMARY

The petitioner, Krishna Veer Katara, said that the electricity connection in his residential house stood in the name of his grandmother, Saroj. She died on 25 August 2018, and his father succeeded her. The distribution licensee told the Court that this connection had already been transferred into the father's name under paragraph 4.4 of the U.P. Electricity Supply Code, 2005. Katara wanted a separate connection and had applied to the licensee. That application was still pending when the writ was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

pending application for a separate connection

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with a direction to the licensee to decide the petitioner's pending electricity-connection application in accordance with law, expeditiously, preferably within four weeks of presentation of a certified copy, after a reasonable hearing. The licensee's statement that the deceased consumer's connection already stood transferred to the father under paragraph 4.4 is not adjudicated. ¶ 3

FLAG Counsel cited paragraph 4.4 for transfer of a deceased consumer's connection. The Court did not construe 4.4 or any sub-clause, and the citation is not rewritten as 4.44.

PRINCIPLE TAGS

procedural-listing-no-construction

No Supply Code clause was construed. Paragraph 4.4 appears only in the licensee's statement that the grandmother's connection already stood transferred to the petitioner's father. The Court left entitlement to a separate connection open and directed the licensee to decide the pending application in accordance with law after hearing. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A SEPARATE ELECTRICITY CONNECTION.

The Court declined to express any opinion on the merits and left the pending application to the licensee. ¶ 3

NOT DECIDED — WHETHER TRANSFER OF SAROJ'S CONNECTION INTO THE FATHER'S NAME WAS PROPERLY MADE UNDER PARAGRAPH 4.4.

That was the licensee's submission and was not adjudicated. ¶ 3

